



Appeal Decision

Site visit made on 25 August 2026

by Jonathan Edwards BSc(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6008562

Manor Court, North Side, Steeple Aston, Bicester OX25 4SE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission
 - The appeal is made by Mrs Veronica Oakeshott against Cherwell District Council.
 - The application Ref is 26/00019/F.
 - The development proposed is new two storey rear extension to replace existing single storey extension along with internal refurbishment and window replacement.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The appeal site lies within the Steeple Aston Conservation Area (the CA) and near to the listed buildings of Manor Court Cottage Rectory Farmhouse and the Church of St Peter and St Paul. In line with statutory duties¹, I have paid special regard and attention to the desirability of preserving or enhancing the character or appearance of the CA and preserving the setting of the listed buildings.
3. The Council considers that the appeal property is not curtilage listed and I have no adequate evidence before me to consider differently. The Council's Conservation Officer has previously suggested, when considering an earlier planning application, that the property should be identified as a non-designated heritage asset (NDHA). However, whilst the Historic Environment PPG notes that these can be identified as part of the decision-making process on planning applications, the earlier comments do not appear to have been concluded upon by the Council or referenced in its current appeal statement. Nevertheless, whilst I have not regarded the appeal property as a NDHA, it lies within the CA and is evidently of heritage significance.
4. A revised version of the National Planning Policy Framework (the Framework) has been issued since the appeal was lodged. There is no need to seek the main parties' views on the new version of the Framework as its provisions on conserving and enhancing the historic environment are similar to the previous version.

Main Issues

5. The Council has not issued a decision on the planning application leading to this appeal. However, in light of the appeal submissions, I consider the main issues are

¹ Sections 72(1) and 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.

whether the development would preserve or enhance the character or appearance of the CA and its effect on the setting and significance of the aforementioned listed buildings.

Reasons

Effect on the character and appearance of the CA.

6. Manor Court is a 2 storey dwelling, positioned side on to North Side so that its wide front and rear elevations are roughly perpendicular to the highway. A stone boundary wall runs along the roadside boundary of the property's back garden. The rear wall to the listed building Manor Court Cottage Rectory Farmhouse runs along the back boundary of the appeal site. There are clear views of the rear of Manor Court from the highway and from the church yard to the Church of St Peter and St Paul, which lies on higher land on the opposite side of the road.
7. The appeal property is a good example of local vernacular as it has limestone and marlstone walls, stone roof slates and a traditional form and massing. Also, it has local historic interest as it formed part of the agricultural development associated with Manor Court Cottage Rectory Farmhouse. The submissions indicate the building was originally a single storey home for farm workers rather than a barn and it has been significantly altered and enlarged over time. Nonetheless, Manor Court has architectural and local historic interest.
8. The appeal property lies in the historic centre of Steeple Aston and within the CA. This part of the village contains mainly residences, predominantly made of stone and with pitched roofs, although the church is the most prominent building. The streets are narrow and frequently lined with buildings or stone boundary walls. The medieval layout of the roads, the prevalence of quintessential stone houses as well as the historic interest of the church and the Manor Court Cottage Rectory Farmhouse all contribute towards the significance of the CA. Also, for the purposes of this appeal, I consider the significance, character and appearance of the CA is drawn from the range of built development within it, the relationship of the buildings to each other and the spaces and land around them. The views from the road of Manor Court and across its garden to the adjacent listed building contribute positively to the character and appearance of the locality.
9. The proposal would include the replacement of an existing single storey projection with a larger, part single part double storey addition. The extension would have a noticeable effect on the appearance of the appeal property as it would be seen over the boundary wall from North Side and from the churchyard opposite.
10. The main part of Manor Court has a distinctive linear form that adds to its visual quality and allows appreciation of its origins and its evolution. To a degree, the existing rear projections interrupt this linear form. However, these additions do not detract from the simple form of the main roof as they are single storey and set below the eaves of the building. Also, their low height helps ensure the existing rear projections appear subservient to the main part of the house.
11. In contrast, the roof to the 2 storey element of the proposed extension would protrude well above the eaves level of the existing building. The proposal has been revised so the extension's roof would be set slightly below the main ridgeline. However, it would still significantly affect the roof form of the host property. Also, the extension would dominate the rear elevation of Manor Court due to its height,

width and depth. As a consequence, it would visually overwhelm the rear of the appeal property so that the linear form of the main part of the house would not be so readily appreciated.

12. The external walls and roofs of the proposed extension would be constructed of materials to match the rest of the house. The proposed windows that would be seen from public vantage points would be of a design and of proportions that reflect existing fenestration. Unsympathetic elements such as larger windows, solar panels and rooflights would be mainly on the elevation facing away from the road and so they would not unduly affect the outward appearance of Manor Court.
13. Nonetheless, the identified harmful effects of the proposed extension on the rear of the host property would be visible from the road. In these regards, the proposal would undermine Manor Court's positive contribution to the qualities of the CA.
14. Therefore, I conclude the development would not preserve or enhance the character or appearance of the CA. In these respects, it would be contrary to policy ESD15 of the Cherwell Local Plan adopted 2015 (2015 LP) and policy C28 of the Cherwell Local Plan adopted 1996 (the 1996 LP) as well as policy HE9 of the Framework. These policies look for development to conserve and enhance conservation areas and those buildings that make a positive contribution to their character or appearance.

Effects on the settings and the significance of the listed buildings.

15. Manor Court Cottage Rectory Farmhouse is a grade II listed building. The list description mentions it was previously a manor house probably dating from about 1400, although with later alterations and additions. Part of its significance lies with its age and historical association with the manor of Steeple Aston. The appellant's heritage statement suggests that its architectural interest is derived from its principal elevations and internal features, although these cannot be seen from the appeal property or public vantage points. However, listed buildings are safeguarded for their inherent architectural and historic interest regardless of whether public views can be gained. Equally, the significance of a building is not just focused on frontages. In this case, large parts of the back wall to the listed building are visible from the road and churchyard. The stone walls and tiled roof in the rear of Manor Court Cottage Rectory Farmhouse reflect the local vernacular and so they are of architectural significance.
16. The extension would affect the setting of the listed building as it would be seen from the appeal property's garden, from the road and from the churchyard in front of and alongside the rear of Manor Court Cottage Rectory Farmhouse. Moreover, the extension would be taller and of much greater volume than the existing projection to the rear of Manor Court and so it would further obstruct views of Manor Court Cottage Rectory Farmhouse compared to the existing situation. Also, by reason of its size and close proximity the extension would draw the eye away from the listed building. The development would only have a minor effect on the way Manor Court Cottage Rectory Farmhouse is seen. Even so, the obscuring of views and the distraction from the listed building would be detrimental to its setting and its architectural and historic significance.
17. The Church of St Peter and St Paul is a grade II* listed building. Its origins date from at least the 13th century although there has been several phases of subsequent rebuilding and alteration works. The significance of the church is partly

derived from its age as well as its architecture that provides an insight into changing trends in design and workmanship over time. Moreover, it plays an important role in demonstrating the cultural and religious history of the village due to its long standing presence and prominence in the heart of the settlement. The close proximity and visual connection between the church and other buildings on North Side add to the appreciation of Steeple Aston's history.

18. From a patio area to the rear of Manor Court there are views of the upper part of the church tower above the existing single storey rear projection. The proposed extension would block these views and so it would affect the way the church is experienced from the appeal property. The development would not impact on views of the church from public vantage points and it would therefore have only a marginal effect on how the church is seen in overall terms. Nonetheless, the loss of a view of the tower would be harmful to its significance, even if the view is from private land.
19. Intervisibility between the church and Manor Court Cottage Rectory Farmhouse is already obscured to a degree by vegetation. The proposal would cause a minor interruption to views between the buildings but a degree of intervisibility will remain. Even so, the long-standing visual and historic association between the buildings would be further eroded by the proposal. In these regards, the development would be harmful to the settings and historic significance of both the church and Manor Court Cottage Rectory Farmhouse.
20. Therefore, I conclude the development would result in harm to the significance of both listed buildings through development that is detrimental to their settings. In these respects, the proposal would be contrary to 2015 LP policy ESD15. This policy looks to ensure all development within the setting and the vicinity of any historic asset is of a design that complements the asset. Reference is made to 1996 LP policy C28 but this contains no provisions relating to listed buildings and development within their settings.

Other heritage assets.

21. The Council suggests the stone wall along the roadside boundary of the appeal site is curtilage listed. Its significance partly lies with its age and use of sympathetic materials. It is also in a prominent position and so it contributes positively towards the wider street scene. The proposed extension would affect the setting of the wall as it would be seen behind it in views from the road and the churchyard. However, irrespective of whether the wall is listed, the extension would be set away from the roadside boundary and so it would not meaningfully affect how the wall is viewed within the street scene. As such, no harm would be caused to the significance of the boundary wall.
22. The appellant's submissions² also refer to other listed buildings within the village. The development would not affect the settings of these buildings due to the separation distances and intervening properties and vegetation.
23. I am referred by the appellant to a 2 storey extension to the nearby listed building called The Old School House that was granted planning permission and listed building consent in 1997. However, from the information provided, this extension is different to the current proposal, particularly in terms of its visibility and relationship

² Listed under paragraph 3.3.50 of the appellant's Heritage Statement.

to other listed buildings. Therefore, I am not bound to arrive at the same conclusion in my assessment of this appeal scheme.

Other considerations and planning balance.

24. I have found the proposal would be unacceptable when considered against the main issues and so it would conflict with the statutory duties and the development plan when read as a whole. It follows to consider whether other factors justify allowing the proposal contrary to the development plan.
25. Part 4 of policy HE6 of the Framework states that where harm would be caused to the significance of a designated asset, that effect should be weighed against any public benefits. The development would include solar panels for the generation of renewable energy. The scheme would also facilitate the internal insulation of the house, so increasing energy efficiency. Policy HE6 of the Framework identifies enabling energy efficiency and low carbon heating measures as an important public benefit. However, whilst the solar panels attract some weight as public benefits the internal insulation could take place in the absence of this proposal.
26. The provision of additional floor space would help address the appellant's accommodation requirements. However, there is little evidence to show the property as it stands is deficient in these regards. In any event, this is a private rather than a public benefit that attracts only limited weight.
27. The proposal would only affect the rear of Manor Court but its effects would be noticed from public vantage points within the central part of the village. The development would affect only a small part of the CA but nevertheless it would affect a prominent vernacular building in a sensitive position within the heart of the area. The proposal would have a modest effect on the CA's significance. The detrimental effects on Manor Court Cottage Rectory Farmhouse would be noticeable from public vantage points. The proposal would cause a moderate degree of harm to the significance of this listed building due to the obscuring and overbearing effect on the rear elevation. The effects on the significance of the listed church would be limited as only views from a small part of the Manor Court's back garden would be affected.
28. Part 1 of policy HE6 of the Framework states that substantial weight should be given to the conservation of a designated heritage asset. With this in mind, I find the harmful effects that would be caused to the significance of Manor Court Cottage Rectory Farmhouse, the Church of St Peter and St Paul and the CA would outweigh any public benefits of the proposal. As such, there is no clear or convincing justification for the harm that would be caused to the significance of these assets. Therefore, the development would be contrary to policy HE4 of the Framework. Accordingly, I find insufficient justification to allow the development contrary to the identified conflict with development plan policies.

Conclusion

29. For the reasons given above, I conclude the appeal should be dismissed.

Jonathan Edwards

INSPECTOR